

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
VALENTIN MORENO,

Plaintiff,

-against-

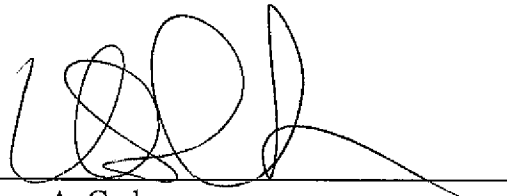
THE CITY OF NEW YORK, POLICE OFFICERS
Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1),
JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo,
shield no. 26046, Individuals believed to be employed
by THE CITY OF NEW YORK
IN THE NEW YORK CITY POLICE DEPARTMENT,Defendants.
-----X

Index No.:

Date Filed:

Plaintiff designates
Queens as the
place of trial.The basis of venue is
Plaintiff's place of residence**SUMMONS****TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney within twenty (20) days after the service of this Summons, exclusive of the day of service or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Elmsford, New York
January 5, 2024**LAW OFFICE OF WILLIAM A. CERBONE**By: William A. Cerbone
Attorneys for Plaintiff, Valentin Moreno
Office and Post Office Address
45 Knollwood Road, Suite 403
Elmsford, New York 10523
(914) 592-5100

Defendants' Addresses:

The City of New York
Corporation Counsel
100 Church Street
New York, New York

POLICE OFFICER Sgt. Daniel Barreto, shield no. 2767
New York City Police Department
1 Police Plaza
New York, New York

POLICE OFFICER JOHN DOE (1)
New York City Police Department
1 Police Plaza
New York, New York

POLICE OFFICERS JOHN DOE (2)
New York City Police Department
1 Police Plaza
New York, New York

POLICE OFFICER Tessa Piteo, shield no. 26046
New York City Police Department
1 Police Plaza
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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VERIFIED COMPLAINT

Index No.:

Date Filed:

Plaintiff, VALENTIN MORENO, complaining of the Defendants, by and through his
attorneys, LAW OFFICE OF WILLIAM A. CERBONE, as and for his Complaint, hereby
alleges as follows:

PRELIMINARY STATEMENT

(1) This is an action for money damages brought pursuant to 42 U.S.C. § 1983, 42 U.S.C. § 1986 and 42 U.S.C. § 1988 and the Fourth and Fourteenth Amendments to the United States Constitution, and under the common law of the State of New York for arrest, false arrest, wrongful detainment, assault and battery, and violation of Plaintiff's civil rights against THE CITY OF NEW YORK, POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, Individuals believed to be employed by THE CITY OF NEW YORK IN THE NEW YORK CITY POLICE DEPARTMENT, individually and in their official capacity as City of New York Police Officers.

(2) It is alleged that the Defendants committed arrest, false arrest, wrongful detainment, assault and battery of the Plaintiff, violating his rights under the Fourth and Fourteenth Amendments of the United States Constitution and under state and federal common law. It is further alleged that these violations and torts were committed as a result of the policies and customs of THE CITY OF NEW YORK IN THE NEW YORK CITY POLICE DEPARTMENT.

CONDITIONS PRECEDENT TO SUIT

(3) On November 16, 2023, within ninety (90) days after the claim herein arose, a Notice of Claim was served upon the Defendant, THE CITY OF NEW YORK, and at least thirty (30) days have elapsed since the service of the aforesaid Notice of Claim, no hearing has been requested by the respondent of THE CITY OF NEW YORK, and adjustment or payment thereof has been neglected or refused.

(4) This action is being commenced within one year and ninety days after the happening of the events upon which the claim is based.

THE PARTIES

(5) Defendants, POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, Individuals believed to be employed by THE CITY OF NEW YORK IN THE NEW YORK CITY POLICE DEPARTMENT were at all times relevant to this complaint duly appointed and acting officers of THE NEW YORK CITY POLICE DEPARTMENT, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New

York and/or THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

(6) Defendant CITY OF NEW YORK is a municipal corporation organized and existing under the laws of the State of New York, and transacting business therein and the public employer of Defendants, POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, Individuals believed to be employed by THE CITY OF NEW YORK IN THE NEW YORK CITY POLICE DEPARTMENT.

(7) Plaintiff VALENTIN MORENO was at all material times a resident of the Borough of Queens, City and State of New York.

JURISDICTION AND VENUE

(8) This Court has personal jurisdiction over the Defendant THE CITY OF NEW YORK because it is a municipal corporation organized and existing under the laws of the State of New York, and transacting business therein.

(9) This Court has personal jurisdiction over Defendants, POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, Individuals believed to be employed by THE CITY OF NEW YORK IN THE NEW YORK CITY POLICE DEPARTMENT, because they are employed by THE CITY OF NEW YORK.

(10) This Court has subject matter jurisdiction over this action by virtue of its status as a Court of general jurisdiction.

THE FACTS

(11) On or about September 3 in the morning of September 4 2023, in the vicinity of 109-38 164 Street in the Borough of Queens in the City and State of New York, Plaintiff, Valentin Moreno was arrested, falsely arrested, wrongfully detained, assaulted and battered, and struck in the knee and ankle with a New York City Police Department service baton.

(12) At all times here and aforementioned that subsequent to the arrest, false arrest, wrongful detainer, assault, and battery of the Plaintiff, VALENTIN MORENO, by the Defendants, POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, the said Defendants did physically release the Plaintiff, VALENTIN MORENO.

(13) Plaintiff, VALENTIN MORENO did not contribute to his own damages and is free of negligence or contributory conduct.

(14) It is claimed Defendants, POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, Individuals believed to be employed by THE CITY OF NEW YORK IN THE NEW YORK CITY POLICE DEPARTMENT, did not have probable cause or justification for arrest, false arrest, wrongful detainment, assault and battery of the Plaintiff, VALENTIN MORENO and failed to properly investigate the facts preceding his arrest.

(15) Plaintiff, VALENTIN MORENO, had neither physically resisted nor assaulted the Defendant Police Officers in any way, and the force used against him was unnecessary, unreasonable, and excessive.

(16) As a direct and proximate result of the acts of Defendants, the Plaintiff VALENTIN MORENO suffered physical, mental, economic and emotional damages.

(17) As a direct and proximate result of the actions of the Defendants, Plaintiff's VALENTIN MORENO's constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution and state and federal common law were violated. Specifically, the following clearly established and well-settled state and federal common law and constitutional rights of the plaintiff were violated:

- (a) Freedom from the unreasonable seizure of his person;
- (b) Freedom from the use of excessive, unreasonable, and unjustified force against his person;
- (c) Right of due process;
- (d) Equal protection under the law;

COUNT I
42 U.S.C. § 1983
4th and 14th Amendments

(18) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 17 of this Complaint with the same force and effect as if fully set forth herein.

(19) Plaintiff VALENTIN MORENO claims damages for the injuries set forth above under 42 U.S.C. 1983 against Defendants, for violation of his constitutional rights under color of law including the Fourth and Fourteenth Amendments to the United States Constitution and state and federal common law.

COUNT II
42 U.S.C. § 1985

(20) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 19 of this Complaint with the same force and effect as if fully set forth herein.

(21) Plaintiff VALENTIN MORENO claims damages for the injuries set forth above under 42 U.S.C. § 1985 against Defendants for conspiring to violate his constitutional rights under color of law.

COUNT III
42 U.S.C. § 1986

(22) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 21 of this Complaint with the same force and effect as if fully set forth herein.

(23) Plaintiff VALENTIN MORENO claims damages for the injuries set forth above under 42 U.S.C. § 1986 against Defendants for Defendants' failure to intervene and prevent the aforesaid violation of Plaintiff's constitutional rights and conspiracy to commit same.

Count IV
42 U.S.C. § 1983 – Municipal Violations

(24) The Plaintiff repeats, reiterates and realleges each and every allegation contained in 1 through 23 of this Complaint with the same force and effect as though fully set forth herein.

(25) Prior to September 3 in the morning of September 4 2023 and since, the CITY OF NEW YORK has permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of force against civilians by police officers of its police department and illegal arrests by police officers of its police department. Although such illegal use of force was improper, the officers involved were not prosecuted, disciplined or subjected to restraint, and such incidents were in fact covered up with official claims that the use of force was justified and proper. As a result, police officers of the CITY OF NEW YORK were caused and encouraged to believe that civilian persons could be abused under the circumstances not requiring the use of excessive force, and that such conduct would in fact be permitted by the CITY OF NEW YORK.

(26) In addition to permitting a pattern and practice of abuse of civilian persons, the CITY OF NEW YORK has failed to maintain a proper system for investigation of all incidents of unjustified beatings and excessive use of force by police officers.

(27) The CITY OF NEW YORK has maintained a system of review of unjustified and excessive use of force, and illegal arrests by police officers that has failed to identify the improper use of force by police officers and failed to subject officers who assault citizens to discipline, closer supervision or restraint and who illegally arrested citizens, to the extent that it has become the custom of the CITY OF NEW YORK to tolerate the improper, illegal arrests and other wrongful actions by police officers.

(28) Upon information and belief, specific flaws in THE CITY OF NEW YORK use of force review process include, but are not limited to, the following:

- a. Preparing reports regarding investigations of excessive force claims as routine point-by-point justifications of the police officer's actions, regardless of whether such actions are justified;
- b. Police officers investigations of excessive force claims systematically fail to credit testimony by non-police officer witnesses, and uncritically rely on reports by police officers involved in the incident;
- c. Police officers investigating excessive force claims fail to include in their reports relevant factual information which would tend to contradict the statements of the police officers involved;
- d. Supervisory police officers at times issue public statements exonerating police officers for excessive use of force and improper use of unnecessary and excessive force before the investigation of the incident by the police department has been completed;

e. Reports in use of force cases are not reviewed for accuracy by supervisory officers. Conclusions are frequently permitted to be drawn on the basis of clearly incorrect or contradictory information.

(29) The foregoing acts, omissions, systemic flaws, policies and customs of the Defendant THE CITY OF NEW YORK caused police officers of its police department to believe that excessive force and other improper actions would not be aggressively, honestly and properly investigated, with the foreseeable result that officers would most likely use excessive force in situations where such force is neither necessary nor reasonable.

(30) As a direct and proximate result of the aforesaid acts, omissions, systemic flaws, policies, practices and customs of the Defendant THE CITY OF NEW YORK, and Defendants, POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, unjustifiably assaulted and detained Plaintiff VALENTIN MORENO all in violation of his civil and constitutional rights and as a result of said acts Plaintiff has suffered from physical injury, psychological harm, mental distress, humiliation, embarrassment, fear and being prevented from attending his usual duties.

(31) By permitting and assisting such a pattern of police misconduct, the CITY OF NEW YORK has acted under color of custom and policy to condone, encourage and promote the deprivation of Plaintiff VALENTIN MORENO's rights as guaranteed under 42 U.S.C. §§ 1983 and 1985 as well as under the Fourth, Fifth and Fourteenth Amendments of the U.S. Constitution; to wit, the Defendants POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, were encouraged by the CITY OF NEW YORK to believe that their actions against the Plaintiff would be accepted without impunity, just as these actions have been so accepted to date.

(32) As a consequence of Defendants' systemic practice, pattern and custom of intentionally promoting and supporting Officers' violations of 42 U.S.C. §§ 1983 and 1985, Plaintiff VALENTIN MORENO was deprived of his freedom and physically harmed, to the extent of which he suffered from various injuries that required medical attention.

(33) As a proximate cause of the CITY OF NEW YORK's custom and policy of supporting and effectively promoting the very same police abuses which occurred against Plaintiff VALENTIN MORENO said Plaintiff was further subjected to great fear, personal humiliation and degradation, with wanton disregard for the serious harm and damage done to the physical and emotional wellbeing of the Plaintiff.

(34) The Defendants POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046 and CITY OF NEW YORK had a duty under 42 U.S.C. §§1983 and 1985, as well as under the Fourth and Fourteenth Amendment, New York State Law, and their own rules and regulations to prevent and cease the assault on Plaintiff, as well as a duty to investigate, supervise and discipline Defendants POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046, and prevent other wrongful acts that were committed against Plaintiff VALENTIN MORENO. Defendant OFFICERS breached said duty, by their actions and omissions as described in the preceding paragraphs.

(35) That by reason of the foregoing, Plaintiff has been damaged in amounts exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this claim.

COUNT V
Assault and Battery (Excessive Force)

(36) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 35 of this Complaint with the same force and effect as if fully set forth herein.

(37) Defendants POLICE OFFICERS Sgt. Daniel Barreto, shield no. 2767, JOHN DOE (1), JOHN DOE (2), POLICE OFFICER PO. Tessa Piteo, shield no. 26046 caused Plaintiff VALENTIN MORENO to be assaulted and battered.

(38) As a result of this assault and battery by physical touching and throwing the Plaintiff VALENTIN MORENO against a wall and striking VALENTIN MORENO's knee and ankle with a New York City issued baton, Plaintiff was forced to endure severe physical and emotional pain and suffering.

(39) Plaintiff claims damages for the physical and emotional pain and suffering incurred as the result of said assault and battery.

(40) As a result of the above, Plaintiff, VALENTIN MORENO, suffered personal injuries, suffered mental and emotional trauma, and was deprived of his civil rights and personal liberty as protected by the United States and New York State Constitution and applicable Federal and New York State statutes.

ATTORNEYS' FEES

(41) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 40 of this Complaint with the same force and effect as if fully set forth herein.

(42) Plaintiff is entitled to an award of attorney's fees pursuant to 42 U.S.C. §1988.

WHEREFORE, Plaintiff, VALENTIN MORENO, requests that this Court grant judgment to him containing the following relief:

- (1) Award compensatory damages to Plaintiff against the Defendants, jointly and severally;
- (2) Award costs of the action to the Plaintiff;
- (3) An award to Plaintiff of his actual damages;
- (4) An award to Plaintiff of reasonable attorney fees;
- (5) An award to Plaintiff of punitive damages; and
- (6) Such other and further relief as this Court may deem just, proper and equitable.

Dated: Elmsford, New York
January 5, 2024

Respectfully yours,

LAW OFFICE OF WILLIAM A. CERBONE

By: 

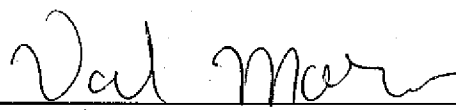
William A. Cerbone
Attorneys for Plaintiff, Valentin Moreno
Office and Post Office Address
45 Knollwood Road, Suite 403
Elmsford, New York 10523
(914) 592-5100

STATE OF NEW YORK, COUNTY OF WESTCHESTER

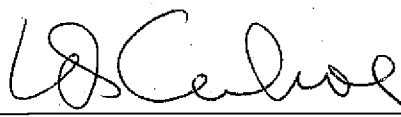
[X] Valentin Moreno, being sworn says: I am the one of/individual plaintiff in the action herein; I have read the annexed complaint know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

The _____ of _____
[] a corporation, one of the parties to the action; I have read the annexed know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon the following:


Valentin Moreno

Sworn to before me on January 6, 2024


Notary Public

William A. Cerbone
Notary Public, State of New York
#02CE5001559
Qualified in Westchester County
Commission Expires 09/06/2024

11/19/26

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

VALENTIN MORENO,

Plaintiff,

-against-

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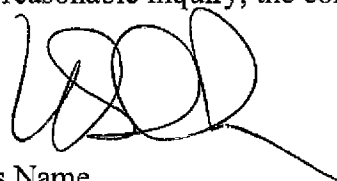
Law Office of William A. Cerbone
Attorney for Plaintiff(s)
Office and PO Address
45 Knollwood Road, Suite 403
Elmsford, New York 10523
(914) 592-5100

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that upon information and belief, and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated:

2/8/24

Signature:



Print Signer's Name

To:

Attorney(s) For Plaintiff

Service of a copy of the within
is hereby admitted.

Dated:

Attorney(s) for